

#	Case Name	Tentative
1	Bailey vs. BDC/Anaheim, LLC 2023-01307941	Motion for Leave to Amend Plaintiff Kimberly Bailey’s Motion for Leave to File a First Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); <i>Atkinson v. Elk Corp</i> (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Defendant Swinerton’s argument that Plaintiff’s motion does not comply with Cal. Rules of Court 3.1324 is not persuasive. The Moving Papers sufficiently state the allegations being added via amendment and their legal effect. (See Wilson Decl. ¶2.) Defendant Swinerton’s arguments directed at the substantive merit of Plaintiff’s proposed amendments is not a ground to deny the motion. (See <i>Atkinson v. Elk Corp. (2003)</i> 109 Cal.App.4th 739, 760 [“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”].) Defendants BDC and Radisson’s fail to establish any cognizable prejudice that would result from permitting the filing of the proposed First Amended Complaint. Trial is months away and the addition of a prayer for punitive damages is based upon the same operative facts that have been the basis of this lawsuit since its commencement. Defendants’ conclusory protestations of prejudice do not overcome the strong policy in support of permitting amendments to the pleadings. Plaintiff shall separately file and serve the proposed First Amended Complaint within 5 days of this ruling. Separate filing of the proposed First Amended Complaint is required to ensure it is properly indexed in the Court’s electronic filing system. Plaintiff shall provide notice.
2	Caronna vs. Trinity International University 2026-01564645	Motion to Appear Pro Hac Vice <i>Continued to 11/19/26.</i>